

9:30 a.m. CALENDAR

LINE

1

**IN THE MATTER OF THE AKELA NANG XAYASOUNTHONE TRUST
FPR045944**

Petition to Approve Eighth Account and Report of Trustee From 12/01/2023, Through 11/30/2025, To Confirm Trust Advisory Committee, Member's and Trustee's Fees, and To Approve Attorney's Fees

PREGRANT ORDER

The court on its own motion continues this hearing to July 20, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issue:

Petition, ¶17: It is unclear why none of the State Agencies were listed in the petition and why there is no proof of service showing that they were given notice of this proceeding.

LINE

2

**IN RE THE ESTATE OF NETTIE R. HINES, DECEASED
FPR047817**

First and Final Report of Administrator, Petition for Final Distribution, For Payment of Statutory Attorney's Fees, and Finding of Equitable Assignment; Waiver of Accounting and Waiver of Personal Representative's Fees

PREGRANT ORDER

The court on its own motion continues this hearing to July 22, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Solano County Tax Collector: The petition states that the claim filed by the Solano County Tax Collector has been resolved by the previous administrator's rejection. However, there is no proof of service to show notice was given as required by Probate Code section 9250.
2. Statutory Attorney Fees: The petitioner seeks statutory attorney fees for Attorney Thomas Healy only. However, the previous administrator was also represented by Attorney Eugene Schneider and Timothy Walsh. While the petitioner states that both previous attorneys have waived compensation, no supporting documents have been provided.
3. Disclaimers: The court will not consider any disclaimers filed in 2016 submitted by the previous administrator who was removed by the court. The previous disclaimers

were filed in support of the petition for final distribution by the removed administrator and such petition was denied. The petitioner must file any supporting documents with the instant petition before the court.

4. Assignments: The petitioner requested that the court interpret the disclaimers as assignments. The court does not intend to grant this request. If the petitioner intends to seek assignments rather than disclaimers, the petitioner must file assignments by each heir assigning their respective interest to the petitioner.

5. Deceased Heir, Phillip Hines's Interest: The petition seeks to distribute the deceased heir's interest to his siblings. However, the court does not intend to grant this request. The distribution must be made through the proper method authorized by probate statutes. (See Prob. Code §§11801, 11802, et seq.)

6. Waiver of Accounting: The petition seeks to waive the accounting. However, there are no waivers of accounting by all heirs on file. Absent waivers by all beneficiaries, the petitioner must provide an accounting. Account Waivers must conform to Solano County Local Rule 7.71 or the petitioner may use Local Form 7001-PR.

7. Omnibus: The prayer seeks to distribute any remaining estate not known or discovered in the future to be made to the petitioner. However, the decedent left a will which provided equal shares for her seven issues. The previous disclaimer only disclaimed interest in the real property, not any other property and is not valid. If the petitioner seeks this relief, the heirs must assign any and all of their future interest to her in an assignment filed with the court under oath.

8. Caption: Counsel is reminded that in probate matters, the "title of each pleading and of each proposed order must clearly and completely identify the nature of the relief sought or granted." (Cal. Rules of Court, Rule 7.102.) Here, the caption on the petition did not mention of denial of statutory compensation to the previous administrator.

LINE

3

IN RE THE ESTATE OF BETTY LOU JONES, DECEASED
PR23-00068

First and Final Report of Administrator; Waiver of Account; Petition for Final Distribution; For Allowance of Compensation to Administrator; Reimbursement of Expenses; Payment of Statutory Attorney's Fees; and Reimbursement of Costs